

Section M - Evaluation Factors for Award

1.0. Basis for Order Award

1.1. This acquisition will utilize Lowest Priced Technically Acceptable (LPTA) Source Selection procedures, with technical proposals, in accordance with FAR Part 15.3 as supplemented. For construction projects with an estimated magnitude less than \$10M the government will not use the mandatory procedures as prescribed in DFARS 215.300. Technical tradeoffs will not be made, and no additional credit will be given for exceeding the technical requirements. The government will only evaluate one proposal from each offeror. Award will be made to the responsible offeror whose proposal is technically acceptable, conforms to all Order Proposal Request (OPR) requirements, to include terms and conditions, representations and certifications, technical requirements, and also provides the best value to the government based on the results of the evaluation. The government reserves the right to award without discussions or exchanges. Therefore, each initial offer should contain the offeror's best terms from both a price and technical standpoint. However, the government reserves the right to conduct discussions if determined necessary by the Procurement Contracting Officer (PCO). The responsible offeror shall meet requirement specification listed in the section 2.1(b) of section L and IAW the Scope of Section 1.2 within the SOW.

1.2. The Source Selection Authority (SSA) will base the source selection decision on an integrated assessment of proposals against all source selection criteria in the OPR. While the government evaluation team and the SSA will strive for maximum objectivity, the evaluation and selection process, by its nature, is subjective and, therefore, professional judgment is implicit throughout the entire process.

1.3. The government intends to select one contractor for this acquisition. However, the government reserves the right not to award an order at all, depending on the quality of the proposals, prices submitted, and the availability of funds.

1.4. The government will consider throughout the evaluation, the "correction potential" of any proposal aspect evaluated as "unacceptable". The judgment of such "correction potential" is within the sole discretion of the government. The correction potential is based on the amount and/or complexity of the correction(s) needed to meet government requirements.

1.5. If discussions are conducted, the government will establish a competitive range comprised of the most highly rated proposals. During the evaluation process multiple competitive range determinations may be made that eliminate offerors from the competition. The competitive range determination can be based on Technical, Price, or a combination of both factors. A competitive range determination may eliminate offerors based on their initial proposal evaluation results, after discussions (if necessary), prior to issuance of the Final Proposal Revision (FPR) request, or for efficiency at any other time prior to the award decision. If offerors are excluded from the competitive range, they may request a debriefing IAW FAR 15.505 or 15.506.

1.6. The government intends to award without discussions but reserves the right to conduct discussions if necessary. Therefore, it is imperative that offerors submit their best terms initially. However, if during the evaluation period it is determined to be in the best interest of the government to hold discussions, the government will determine if responses to Evaluation Notices (ENs) received during discussions will be considered formal proposal revisions, or if offerors will be required to include EN responses in the FPR. The Request for FPR letter will include specific instructions on how offerors will submit FPRs. The government also reserves the right to request Draft FPRs during discussions.

1.7. Offerors are required to meet all OPR requirements, to include terms and conditions, representations and certifications, and Statement of Work (SOW) requirements, in addition to those identified as factors and subfactors. Failure to comply with the terms and conditions of the OPR may result in the offeror being ineligible for award. Offerors must clearly identify any exception to the OPR terms and conditions and must provide complete supporting rationale. The government reserves the right to determine any such exceptions unacceptable, and therefore, the proposal ineligible for award.

1.8. Evaluation Methodology: The Government will evaluate all factors concurrently for all proposals. Initial ratings and evaluated price will be established for each offeror. Only those offerors determined to be technically acceptable, either initially, or as a result of discussions will be considered for award. Award will be made to the lowest evaluated priced proposal meeting the acceptability standards for Factor 1 Technical, who has been determined responsible IAW para 2.4 below, and whose proposal conforms to the solicitation requirements (to include all stated terms, conditions, representations, certifications, and all other information required by Section L of this solicitation.

2.0. Technical Rating

2.1. The Technical evaluation will be based on each's offeror's approach for meeting the technical requirements listed below. The evaluation focuses on the technical approach as described in each offeror's technical volume. The technical evaluation does not consider price. Each subfactor within the technical factor will receive one of the ratings described below based on the criteria listed below. Individual subfactor ratings will be used to determine the overall technical acceptability of each offeror. To be determined technically acceptable at the factor level, the Offeror must be rated acceptable in each subfactor. A single deficiency within a subfactor will result in an unacceptable rating for that subfactor. A final unacceptable subfactor assessment will determine an overall technical unacceptable rating, and therefore, un-awardable. Only those proposals determined to be technically acceptable, either initially, or as a result of discussions, will be considered for award. The technical evaluation will also consider risk in determining overall acceptability. Risk pertains to the potential for unsuccessful contract performance. Risk will not receive a separate rating, rather, it will be inherent within the subfactor ratings, and the overall Technical rating. Only Low Risk approaches will be deemed acceptable.

2.2. Technical Subfactor 1, Capability and Management: This subfactor is met when the offeror sufficiently demonstrates and describes how the offeror will meet the capability and

management requirements to complete the construction and administrative requirements with little potential for disruption of schedule, increased price, or degradation of performance. The evaluation will include the offeror's proposal to meet the following:

2.2.1. Sufficient description of commitment to support an on-site management team, including a sole source responsibility for both design and construction of this project. IAW Section 3.12. Contractor Personnel Requirements and 3.12.5.1 to 3.12.3.2 Design Program Manager within the SOW.

2.2.2. Sufficient approach to manage, supervise, and coordinate all subcontractor's work and state who in the organization is responsible for this management and coordination. IAW all Section 3.12.6.

2.2.3. Sufficient description of how warranty support, unforeseen site conditions, design errors, etc., will be handled by your organization. The responsible offeror shall meet warranty requirement specification listed in the Warranty of Construction Clause IAW FAR 52.246-21. The offeror will meet unforeseen site condition requirement specification listed in the Differing Site Condition Clause IAW FAR 52.236-2.

2.2.4. Sufficient description of your team list of the primary point of contacts. The responsible offeror shall meet requirement specification IAW Section 3.12 Contractor Specific Requirements within the SOW.

2.3. Technical Subfactor 2, Schedule and Planning. This subfactor is met when the offeror sufficiently demonstrates and describes how the offeror can schedule and plan the construction project that will meet or improve the mandatory completion date with little potential for disruption of schedule, increased price, or degradation of performance. The evaluation will include the offeror's proposal to meet the following requirement specification IAW all of Section 3.6 of the SOW.

2.3.1. Sufficient construction schedule that meets the mandatory completion date stated in the OPR. The schedule shall demonstrate a reasonable and realistic sequence of activities which represent all work to be performed throughout the entire order performance period, while considering the major work elements from the detailed price proposal, as well as submittal reviews, mobilization, material delivery times, anticipated weather delays, and final inspection/closeout. The responsible offeror shall meet requirement specification IAW Section 3.6.1 of the SOW.

2.3.2. Sufficient detail within the schedule that considers submittals, milestones (such as final inspections), and construction related permits/requests (such as Outage/Closure Requests or Excavation Permits) that will require longer lead times for Government coordination/approval. The responsible offeror shall meet requirement specification listed in the of section 3.6.2 of the SOW.

2.3.3. Sufficient detail within the schedule that provides specific timelines for staging area approvals, airfield waivers, outage requests and other Government approvals as provided in the SOW Section 3.6.2 in table listed as “Delivery Schedule & Submittals”.

2.4. The technical rating reflects the evaluation of the acceptability of the offeror’s technical approach for meeting the government’s requirement. The offeror’s proposal shall be evaluated to determine whether the proposal is acceptable or unacceptable, using the ratings and descriptions outlined in the table below. One technical rating will be assigned to each technical subfactor. In order to be considered awardable, there must be an “acceptable” rating in every subfactor.

Adjectival Rating	Description
Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

3.0. Price

3.1. Price proposals will be evaluated for (1) reasonableness, (2) balanced pricing, and (3) realism. Offerors whose price is determined to be unreasonable will not be considered for award. Additionally, an offeror’s price may be rejected, if it contains unbalanced pricing to the extent, it poses an unacceptable risk to the government.

3.2. The proposed prices will be evaluated for reasonableness to include completeness. Analysis of price proposals will be performed using one or more of the techniques defined in FAR 15.404-1(b)(2) in order to determine price reasonableness. Reasonableness must represent a price to the government believes a prudent person would pay in the conduct of competitive business. Normally, price reasonableness is established through adequate price competition, but may also be determined through price analysis techniques as described in FAR 15.404-1(b)(2). The proposal will be evaluated for completeness to ensure the offeror has proposed pricing for all CLINs except for those labeled not separately priced (NSP).

3.3. Offerors’ proposals will be reviewed for balanced pricing. The government will evaluate any supporting information provided by the offeror explaining variances that appear unbalanced. Evaluated offers that are determined to be unbalanced may be deemed ineligible for award by the PCO if a determination is made that lack of balance poses an unacceptable risk to the government. Unbalanced pricing exists when, despite an acceptable total price, the price of one or more-line items is significantly over or understated as demonstrated by application of price analysis techniques, such that:

- a) There is reasonable doubt the offer would result in the lowest overall price to the government, even though it is the lowest priced offeror; or
- b) The offer is so grossly unbalanced; its acceptance would be tantamount to allowing an advanced payment.

3.4. Proposed prices will be evaluated for price realism. To be realistic, the proposed price must demonstrate an adequate understanding of and consistency with the requirement and must ensure the price does not pose an unacceptable risk to performance. All documentation submitted to support price realism will be considered in making a determination of price realism. To evaluate price realism, the Government intends to use one or more of the price analysis techniques described in FAR 15.404-1(b)(2). The Government may also use other evaluation techniques, as needed.”

3.5. As applicable, the offeror’s proposal will be evaluated for compliance with DFARS 236.606-70, Statutory Fee Limitation, if the contract includes architect-engineer services for the preparation of designs, plans, drawings and specifications.

3.6. If requested by the PCO, data other than certified cost and pricing data shall be evaluated to support a determination of reasonable and balanced pricing. This information will only be requested if all other sources have been insufficient to support a determination of reasonable and/or balanced pricing.

3.7. All proposed dollar amounts shall be rounded to the nearest cent. All rates proposed as a percentage shall be rounded to four decimal places to the right of the decimal point. If any pricing proposal deviates from this format, the government will apply the specified format to determine the extended pricing and Total Evaluated Price (TEP). Compliance with instructions regarding rounding will be verified during evaluation.

3.8. Pricing proposals will be reviewed for compliance with the ITO.

3.9. The TEP will be calculated as the sum of the offeror’s proposed prices for all CLINs and all options (as applicable). TEP will be used for evaluation purposes only. Evaluation of options shall not obligate the government to exercise such options.